

**The “Settled and Well Understood Construction of the Constitution”? Rejection of the
Presidentialist Position on the Removal Power During the Age of Jackson**

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I. INTRODUCTION

In its brief for *Trump v. Slaughter*, a case challenging the constitutionality of the Federal Trade Commission’s statutory removal protections, the Government asserted that “The Decision of 1789 supplies ‘contemporaneous and weighty evidence of the Constitution’s meaning,’ and it

soon became the ‘settled and well understood construction of the Constitution.’”¹ This quote refers to the series of debates that took place during the First Congress in 1789 where the President was ultimately given the power to remove the Secretary of the newly-created Department of Foreign Affairs. It has become boilerplate language in the Supreme Court’s opinions that address the constitutionality of congressional limitations on the President’s ability to remove executive branch officers.²

The following paper argues that this oft-made claim is demonstrably false. “The Decision of 1789,” as this series of debates is often called, is frequently invoked to defend an interpretation of the Constitution that vests the President with unrestricted removal power—what this paper will refer to as the “Presidentialist” position/view.³ The interpretive value of “The Decision of 1789” depends on several premises: (i) It supplied evidence of original meaning; (ii) It delivered a definite outcome in favor of the Presidentialist position on removals; and (iii) It was understood as the correct reading of the Constitution, evinced through the general acquiescence by statesman and legal authorities in the outcome of the Decision.⁴ In recent years, substantial scholarship has emerged that challenges the first two premises.⁵ This paper seeks to make a new contribution by refuting the third premise through sources and evidence from the “Age of Jackson”⁶ (specifically the 1820s-1830s), a time of contentious yet nuanced debate over the removal power by leading statesman and legal thinkers.

This paper seeks to add a new perspective on the removal debate by consolidating influential voices from the Age of Jackson to refute the claim that—whatever the initial ambiguities of the Decision of 1789—the Presidentialist position “soon became the settled and well understood construction of the Constitution.” The Senate Speeches of Daniel Webster,

¹ Brief for Petitioner at 15, *Trump v. Slaughter* (2026) (No. 25-332) (quoting *Free Enterprise Fund v. PCAOB*, 561 U.S. 477, 492 (2010)).

² *Bowsher v. Synar*, 478 U.S. 714, 723-724 (1986)); *Free Enterprise*, 561 U.S. at 492; *Seila Law v. PCAOB*, 140 S. Ct. 2183, 2197 (2020).

³ *See infra* Part II.A.

⁴ *See* Brief for Petitioner at 16, *Trump v. Slaughter* (2026) (No. 25-332) (“The ‘universal practice of government conformed to [the Decision of 1789], and statesmen and jurists accepted its ‘correctness.’”) (citing *Parsons v. United States*, 167 U.S. 324, 330 (1897)).

⁵ *See infra* Sec. II.A.iii.

⁶ Arthur M. Schlesinger’s famous study of the period popularized this term. ARTHUR M. SCHLESINGER, *THE AGE OF JACKSON* (1953). This paper uses the term because it is familiar and succinct. That said, there are compelling reasons why this term and variations on it are misleading. *See* DANIEL WALKER HOWE, *WHAT HATH GOD WROUGHT: THE TRANSFORMATION OF AMERICA, 1815-1848* 4-5 (2023) (“I avoid the term [Jacksonian America] because it suggests that Jacksonianism describes Americans as a whole, whereas in fact Andrew Jackson was a controversial figure and his political movement bitterly divided the American people.”).

Henry Clay, and John Calhoun and the legal commentary of Joseph Story, James Kent, and William Wirt demonstrate outright rejection of—or at least, serious doubts about—the Presidentialist position.

Further, this paper seeks to redirect attention to these neglected sources from the Age of Jackson. While contemporary constitutional interpretation focuses heavily—and almost exclusively—on Founding Era sources, this paper attempts to demonstrate the continued value of Jacksonian sources. These sources engaged in the same textual, historical, and structural arguments as modern constitutional scholars. Their remarkably erudite interpretations of the Constitution are worth another look.

This paper proceeds as follows. Part II delineates the Presidentialist view of the removal power, identifying its key premises and tracing the Supreme Court’s embrace of this position. Part III argues that sources from the Age of Jackson remain relevant for constitutional interpretation and are probative of the original understanding of the removal power. Part IV argues that the historical evidence of disagreement by prominent statesmen and legal authorities during the Age of Jackson refutes the claim that the Presidentialist position was the “settled and well understood construction of the Constitution.” Moreover, the critiques of the Presidentialist position articulated by these sources comport with recent scholarship on the original public meaning of key constitutional provisions. Part V concludes with a few final thoughts.

II. THE PRESIDENTIALIST POSITION ON THE REMOVAL POWER

Prominent constitutional scholars like Saikrishna Prakash & Aditya Bamzai, Michael McConnell, and Steven Calabresi & Christopher Yoo believe that the Constitution vests the President with the authority to remove subordinate executive branch officers.⁷ This is sweeping: For scholars like Prakash, this means *all* officers and includes not just principal officers

⁷ Aditya Bamzai & Saikrishna Bangalore Prakash, *The Executive Power of Removal*, 136 HARV. L. REV. 1756, 1763 (2023) (“[W]e believe that the Article II vesting of “executive power” is a grant of substantive authority and not merely a reference to the powers subsequently mentioned . . . The Vesting Clause’s grant of power has several components, one of which is the power to remove executive officers.”); MICHAEL MCCONNELL, THE PRESIDENT WHO WOULD NOT BE KING 167 (2020) (“The Take Care Clause demands that any officer with significant discretionary authority be removable at will.”); STEVEN G. CALABRESI & CHRISTOPHER S. YOO, THE UNITARY EXECUTIVE: PRESIDENTIAL POWER FROM WASHINGTON TO BUSH 3-4 (2008) (“As a matter of constitutional law, the theory of the unitary executive holds that the Vesting Clause of Article II, which provides that “the executive Power shall be vested in a President of the United States of America,” is a grant to the President of all of the executive power, which includes the power to remove and direct all lower-level executive officials.”).

occupying Senate-confirmed positions but also “inferior officers.”⁸ Further, the Court’s conception of an “officer” may be quite broad: Justice Thomas, for example, has repeatedly cited the analysis of Jennifer Mascot, who concluded that “officer” in Article II “includes all federal officials with responsibility for an ongoing statutory duty.”⁹ The Roberts Court has largely embraced this “Presidentialist” view of the removal power.¹⁰ This section first outlines the main premises of this position. Then, it briefly recaps the line of cases in which the Supreme Court has adopted this position and comments on the apotheosis of this view in the Government’s brief in *Trump v. Slaughter*.

A. Premises of the Presidentialist Position

The Presidentialist position on the removal power rests on three main premises: (i) The Executive Power Clause; (ii) the Take Care Clause; and (iii) the “Decision of 1789.”

i. The Executive Power Clause

The Presidentialist position interprets the Executive Power Clause as a substantive grant of authority that includes a variety of unenumerated Presidential powers. The Executive Power Clause states: “The executive Power shall be vested in a President of the United States of America.”¹¹ For Presidentialist scholars, this clause has a sweeping and clear import: “The Executive Power Clause is not some trivial, obscure, or indecipherable provision. It grandly opens the Constitution’s second article, has a rich (if forgotten) history, and has a relatively clear original meaning.”¹² Under this view, the Executive Power Clause is substantive because it grants powers to the President that are not enumerated elsewhere in Article II.¹³ Instead, the term

⁸ Bamzai & Prakash, *supra* note 7, at 1830 n. 536 (“One of us (Prakash) believes that the President has a constitutional power to remove all executive officers, including inferior officers, and that Congress lacks constitutional authority to limit the removal of inferior executive officers.”).

⁹ Jennifer L. Mascot, *Who are “Officers of the United States”*, 70 STAN. L. REV. 443, 564 (2018) (using corpus linguistics to examine Founding Era uses of the term ‘officer’). This likely includes positions such as “(i) officials overseeing federal disaster relief preparations; (ii) tax collectors; (iii) officials authorizing federal benefit payments; (iv) contract specialists; (v) federal law enforcement officers; (vi) officials responsible for government investigations, audits, or cleanup; and (vii) ALJs.” *Id.* at 454.

¹⁰ See Bamzai & Prakash, *supra* note 7, at 1762 (“As a matter of original meaning, the Roberts Court is right . . . The “executive power” granted by Article II encompassed multiple strands, one of which was the power to remove executive officers.”); Aaron L. Nielson & Christopher J. Walker, *Article II and the Civil Service*, 113 VA. L. REV. at 5 (forthcoming 2027) (“[T]he Court has adopted the unitary-executive theory, which reasons that because all executive power is vested in the President, the President can freely fire subordinates.”).

¹¹ U.S. CONST. art. II, § 1.

¹² Saikrishna Prakash, *The Essential Meaning of Executive Power*, 2003 U. ILL. L. REV. 701, 705 (2003).

¹³ *Id.* at 714 (“The Executive Power Clause grants authority beyond those powers listed elsewhere in Article II.”).

“executive power” encompassed the powers associated with other chief executives at the time.¹⁴ Given the political thinkers familiar to the Framers and the public, examples from other countries, the choice of language, and historical analyses of the drafting and ratification of the Constitution, such scholars consider the substantive interpretation to be the most plausible.¹⁵

On this view, the substance of the executive power includes several authorities associated with executive power, one of which is the power to remove executive officers. “Early American lawyers understood the phrase ‘executive power’ to contain a conceptual core, such that the vesting of ‘executive power’ implicitly conferred certain authorities” such as “appointments, foreign affairs, military command, and pardons.”¹⁶ Examining antecedent chief executives in Britain, the American colonies, and American state constitutions, Bamzai & Prakash conclude that they broadly enjoyed a power to appoint and remove and thus that “removal was seen as a power of the executive and hence was regarded as an executive power.”¹⁷ Moreover, because removal is an executive power and the Constitution nowhere grants Congress “the power to defease that power,” Congress has no authority to interfere with the President’s removal authority. “In this respect, the removal power is no different than the pardon power, the veto power, or the legislative powers of Congress.”¹⁸

Michael McConnell has theorized that the Framers—specifically the Committee of Detail—likely worked from a mental list of Royal Prerogatives taken from Blackstone and divided them between Congress and the President, with a few denied to the national government altogether.¹⁹ While the Committee “carefully limited and defined all the prerogative powers it assigned to the new executive,” it also included the Executive Power Clause which “likely

¹⁴ *Id.* at 714 (“In general, the clause grants the President all those rights, powers, and privileges commonly associated with a chief executive vested with the executive power, subject to the many exceptions and limitations enumerated in Article II and elsewhere in the Constitution.”); MCCONNELL, *supra* note 7, at 235 (“[T]he Vesting Clause vests all national powers of an executive nature in the President, except for that portion of the executive power vested elsewhere . . . and except for the limitations and qualifications on the particular executive powers that are set forth in the text.”).

¹⁵ See MCCONNELL, *supra* note 7, at 238-51 (“[T]aking textual, contextual, and historical arguments into consideration, it appears to this author that the substantive interpretation is the more plausible.”). See generally Prakash, *supra* note 12 (arguing that the substantive interpretation is most plausible based on textual analyses, eighteenth century political theorists, pre-and post-ratification American practice, and debates at the Philadelphia and ratification conventions).

¹⁶ Bamzai & Prakash, *supra* note 7, at 1764.

¹⁷ *Id.* at 1770; see also MCCONNELL, *supra* note 7, at 162 (noting that Blackstone, well-known to the Framers, observed that “the king had the prerogative power to remove most officers at will”).

¹⁸ Bamzai & Prakash, *supra* note 7, at 1789. One might note that while the Constitution explicitly enumerates all these powers, it says nothing about removal.

¹⁹ MCCONNELL, *supra* note 7, at 95.

allocated some residuum of unspecified executive powers to the President—but only powers not explicitly vested elsewhere.”²⁰

In recent years, the Supreme Court has repeatedly endorsed this substantive reading of the Executive Power Clause. In his dissent in *Morrison v. Olson* (1988), Justice Scalia memorably pronounced that the Executive Power Clause “does not mean *some of* the executive power, but *all of* the executive power.”²¹ Included within this grant of executive power was the investigation and prosecution of crimes, “a quintessentially executive function” based on Scalia’s claim that prosecution has “always and everywhere—if conducted by government at all—been conducted never by the legislature, never by the courts, and always by the executive.”²² Writing for the majority in *Free Enterprise Fund v. PCAOB* (2010), Chief Justice Roberts commenced his analysis by quoting a floor statement from James Madison at the First Congress: “[I]f any power whatsoever is in its nature Executive, it is the power of appointing, overseeing, and controlling those who execute the laws.”²³ Roberts claimed that “the executive power included a power to oversee executive officers through removal; because that traditional executive power was not ‘expressly taken away, it remained with the President.’”²⁴ Ten years later and once again writing for the majority in *Seila Law v. CFPB* (2020), Roberts pronounced that “[t]he entire ‘executive Power’ belongs to the President alone”²⁵—to include the removal power. “As we have explained many times before, the President’s removal power stems from Article II’s vesting of the ‘executive power’ in the President.”²⁶ Removal was essential to the President’s ability to control his subordinates, for “it is only the authority that can remove such officials that they must fear and, in the performance of [their] functions, obey.”²⁷

ii) *The Take Care Clause*

The Presidentialist position also relies on the Take Care Clause to support its position that the President has the power to removal executive branch officials. The Take Care Clause states

²⁰ *Id.* at 96. Though, as discussed below, this is not where he lodges the removal power, which he understands to be an aspect of the indefeasible Presidential prerogative to “take care that the laws be faithfully executed.”

²¹ *Morrison v. Olson*, 487 U.S. 654, 705 (1988) (Scalia, J., dissenting).

²² *Id.* at 706.

²³ *Free Enterprise Fund v. PCAOB*, 561 U.S. 477, 492 (2010) (quoting Madison, 1 ANNALS OF CONG. 463 (1789)).

²⁴ *Seila Law v. CFPB*, 140 S. Ct. 2183, 3152 (2020) (quoting Letter from James Madison to Thomas Jefferson (June 30, 1789) 16 Documentary History of the First Federal Congress 893 (2004)).

²⁵ *Seila Law*, 140 S. Ct. at 2197.

²⁶ *Id.* at 2205.

²⁷ *Id.* at 2197 (internal citations removed).

that the President “shall take Care that the Laws be Faithfully executed”²⁸ For Presidentialists, the duty to take care that the laws be faithfully executed would be impossible if the President could not remove uncooperative subordinates: “Unless the President has the power to remove executive officers ‘at pleasure’ . . . he cannot exercise control of the executive branch, cannot ‘take care’ that the laws be faithfully executed, and is deprived of a portion of ‘the executive power.’”²⁹ McConnell argues that powers that are constitutionally vested with the President are “indefeasible,” meaning Congress cannot abridge or interfere with them. Thus, reasons McConnell, because the Constitution assigns to the President the duty to “take care that the laws be faithfully executed” and the removal power is necessary to the fulfillment of this duty, Congress is barred from interference with the President’s removal power.³⁰

The Take Care Clause has been integral to the Roberts Court’s removal cases. In *Free Enterprise*, the Court invalidated the Public Company Accounting Oversight Board’s (PCAOB) multilevel removal protection because “[t]he President cannot ‘take care that the Laws be faithfully executed’ if he cannot oversee the faithfulness of the officers who execute them.”³¹ In *Seila Law*, Roberts again cited the President’s duty to “take care that the laws be faithfully executed”³² and reasoned that without the ability to remove administrative officers, it “would make it impossible for the President . . . to take care that the laws be faithfully executed.”³³ This responsibility is given heightened importance by what the Court considers the unique “accountability” of the President: “The resulting constitutional strategy is straightforward: divide power everywhere except for the Presidency, and render the President directly accountable to the people through regular elections.”³⁴

²⁸ U.S. CONST. art II, § 3.

²⁹ MCCONNELL, *supra* note 7, at 162 (“An officer appointed by a predecessor, or with whom the President has had a falling-out, could remain ensconced in office, exercising discretionary power, thumbing his nose at the elected President.”); CALABRESI & YOO, *supra* note 7, at 7 (“Presidents need the power to fire subordinates when they disagree with them on policy grounds or when they are incompetent.”).

³⁰ MCCONNELL, *supra* note 7, at 166. For Prakash, who lodges the removal power in the Executive Power Clause, the Take Care Clause holds a less important role in the President’s control over removals: “The Faithful Execution Clause imposes a duty of faithful law execution on the only officer who enjoys the executive power [the President].” Prakash, *supra* note 12, at 722.

³¹ *Free Enterprise Fund v. PCAOB*, 561 U.S. 477, 484 (2010).

³² *Seila Law v. CFPB*, 140 S. Ct. 2183, 2197 (2020).

³³ *Id.* at 2198 (internal citations removed).

³⁴ *Id.* at 2203. For an argument that this conception of the Presidency is anachronistic, see *infra* note 159.

iii) “*The Decision of 1789*”

The Presidentialist view also leans heavily upon the outcome of Congressional debates in 1789 over the removal of the Secretary of the newly created Department of Foreign Affairs. During these debates, four theories of removal were articulated: (i) officers could be removed only via impeachment; (ii) Congress could authorize the President to remove via statute; (iii) because the President and Senate shared the appointment power, and the removal power was incidental to the appointment power, joint action by the President and Senate was necessary to remove; and (iv) the removal power was part of the “executive power” vested in the President.³⁵ “After five days of sophisticated debate on the constitutional point,”³⁶ the First Congress declared via statute that the Secretary would be removable only “by the President.”³⁷ Congress also included similar language in the statutes creating the Departments of War and the Treasury.³⁸ “The Decision of 1789” has been interpreted by Presidentialist scholars and the Court as a recognition by the First Congress that the Constitution vested the removal power in the President.³⁹

For Presidentialist scholars, “the Decision of 1789” decisively settled the issue of removal in favor of Presidential control. Prakash argues that “the debates surrounding the Decision reflected [the] understanding of the President’s removal authority” that “removal of executive officers was an executive power, and because the Constitution did not constrain or abridge removal authority, the President had the power to remove all executive officers unilaterally.”⁴⁰ Calabresi & Yoo assert that “the First Congress voted that its institutional rival the President had the removal power in the famous Decision of 1789.”⁴¹

“The Decision of 1789” has received similarly reverential treatment by the Roberts Court. The Court places great weight upon these debates as evidence of the original meaning of

³⁵ Bamzai & Prakash, *supra* note 7, at 1774.

³⁶ MCCONNELL, *supra* note 7, at 163.

³⁷ Brief for Professor Andrea Scoseria Katz and Jonathan Gienapp Supporting Respondents at 11, *Trump v. Slaughter* (2026) (No. 25-332) (citing Act for Establishing an Executive Department, to be Denominated the Department of Foreign Affairs, ch. 4, 1 Stat. 28 (1789)).

³⁸ MCCONNELL, *supra* note 7, at 163.

³⁹ *Id.* at 163; Bamzai & Prakash, *supra* note 7, at 1793 (“[E]ach of Congress’s three departmental Acts—Foreign Affairs, War, and Treasury—implicitly endorsed the view that the President had a constitutional power to remove executive officers . . .”).

⁴⁰ Saikrishna Prakash, *New Light on the Decision of 1789*, 91 CORNELL L. REV. 1021, 1069 (2006); *see also* MCCONNELL, *supra* note 7, at 167.

⁴¹ CALABRESI & YOO, *supra* note 7, at 42.

the Constitution: “The Decision of 1789 provides contemporaneous and weighty evidence of the Constitution’s meaning since many of the Members of the First Congress had taken part in framing that instrument.”⁴² As the Court assesses this event, the “view that prevailed, as most consonant to the text of the Constitution” was that the executive power included a power to oversee executive officers through removal.⁴³ In the Court’s view, not only did this position prevail, but “it soon became the settled and well understood construction of the Constitution.”⁴⁴

B. The Roberts Court’s Embrace of the Presidentialist Position

In a line of cases, the Roberts Court has embraced the Presidentialist view of the removal power. In *Free Enterprise Fund*, the Court invalidated two-layers of for-cause removal protections for the PCAOB.⁴⁵ In *Seila Law*, the Court found unconstitutional for-cause removal protections for the single-headed director of the Consumer Financial Protection Bureau.⁴⁶ Similarly, in *Collins v. Yellen* (2020), the Court invalidated removal protections for the single-

⁴² *Free Enterprise Fund v. PCAOB*, 561 U.S. 477, 492 (2010) (quoting *Bowsher v. Synar*, 478 U.S. 714, 723-724 (1986)).

⁴³ *Id.* at 492.

⁴⁴ *Id.* at 492 (internal quotations removed); *see also* *Seila Law v. CFPB*, 140 S. Ct. 2183, 2197 (2020). This language can be traced back to *in re Hennan*, 38 U.S. 230, 259 (1839), a case in which the Court considered whether a district court clerk, as an “inferior officer,” could be removed at any time by the judges who appointed him. *See* CALABRESI & YOO, *supra* note 7, at 128. In dicta, the *in re Hennan* Court recounted the debates over the removal power in 1789. The Court observed that the “sound and necessary rule” in the “absence of all constitutional provision, or statutory regulation” was to consider removal an incident of the appointment power: “No one denied the power of the President and Senate, jointly, to remove, where the tenure of office was not fixed by the Constitution; which was a full recognition of the principle that the power of removal was incident to the power of appointment.” *In re Hennan*, 38 U.S. at 259. Nevertheless, the Court claimed the Decision of 1789 had changed that: “But it was very early adopted, as the practical construction of the Constitution, that this power was vested in the President alone.” *Id.* This “became the settled and well understood construction of the Constitution, that the power of removal was vested in the President alone” *Id.* For Calabresi & Yoo, “[d]icta in *Hennan* thus accept the Decision of 1789 as having construed the Constitution as giving the President unlimited removal power.” CALABRESI & YOO, *supra* note 7, at 128. For the same reason, *in re Hennan* also features in the Government’s Brief in *Slaughter*. Brief for Petitioner at 16, *Trump v. Slaughter* (2026) (No. 25-332). The Government and Calabresi & Yoo may be overreading *in re Hennan*. Query how much work the word ‘practical’ is doing. The Court in *in re Hennan* acknowledged that the natural understanding of the unenumerated removal power was as an incident to the enumerated appointment power, shared by the President and Senate. The Presidentialist position was adopted as the “*practical* construction.” *In re Hennan*, 38 U.S. at 259 (italics added). The Oxford American Dictionary 2d ed. defines ‘practical’ as “(1) relating to the actual doing or use of something rather than theory; (2) likely to be effective or successful; (3) suitable for a particular purpose.” *Practical*, OXFORD AMERICAN DICTIONARY (2d ed. 2010). While Calabresi & Yoo claim the Court understood the Decision of 1789 as one of interpreting the Constitution, this “practical construction” language makes it seem more ambiguous, as if it was a decision made for expediency or because it made particular sense to give the President removal power with respect to the Departments of Foreign Affairs, War, and the Treasury. Nevertheless, it is in *in re Hennan* that the “settled and well understood construction of the Constitution” language makes its first appearance.

⁴⁵ *Free Enterprise Fund v. PCAOB*, 561 U.S. 477, 492 (2010).

⁴⁶ *Seila Law v. CFPB*, 140 S. Ct. 2183, 2197 (2020).

headed director of the Federal Housing Finance Agency.⁴⁷ With each opinion, the stock of propositions espousing Presidentialist views of the removal power—predicated on the Executive Power Clause, Take Care Clause, and “Decision of 1789”—has grown.

Recognizing their audience, the Government’s brief in *Trump v. Slaughter* (2025), challenging the constitutionality of the FTC’s statutory removal protections, represents the apotheosis of this view. In arguing that “Article II Grants The President Conclusive and Preclusive Power To Remove Executive Officers,” the brief draws on all the familiar sources—with nearly every proposition supported by a direct quote from previous cases. The Government grounds its argument in the Executive Power Clause: “The entire ‘executive Power’ belongs to the President alone”⁴⁸ and “if any power whatsoever is in its nature Executive, it is the power of appointing, overseeing, and controlling those who execute the laws.”⁴⁹ Included within this power to control the executive branch is “the authority to remove those who assist him.”⁵⁰ The Government argues that “[t]he President’s removal power has long been confirmed by history and precedent.”⁵¹ In particular, the Government places great weight upon the “Decision of 1789,” arguing that executive control of the removal power “prevailed, as most consonant to the text of the Constitution.”⁵² Quoting *Free Enterprise*, the Government avers that the Decision of 1789 “soon became the ‘settled and well understood construction of the Constitution.’”⁵³ “The ‘universal practice of government conformed to it, and statesmen and jurists accepted its ‘correctness.’”⁵⁴

III. THE AGE OF JACKSON IS RELEVANT TO UNDERSTANDING THE REMOVAL POWER

Notably absent from the Court’s opinions on the removal power are sources from the Age of Jackson. The wealth of commentary on the removal power during this period is largely ignored because it is viewed as irrelevant for purposes of ascertaining the original understanding of the removal power. That is a mistake. Sources from the Age of Jackson are relevant to the debate over the removal power for several reasons: (i) It is necessary to consult them to evaluate

⁴⁷ *Collins v. Yellen*, 141 S. Ct. 1761, 1783 (2020).

⁴⁸ Brief for Petitioner at 15, *Trump v. Slaughter* (2026) (No. 25-332) (citing *Seila*, 140 S. Ct. at 2197).

⁴⁹ *Id.* at 14 (citing *Seila Law*, 140 S. Ct. at 2197).

⁵⁰ *Id.* at 14.

⁵¹ *Id.* at 15 (citing *Seila Law*, 140 S. Ct. at 2188).

⁵² *Id.* at 15 (*Free Enterprise Fund v. PCAOB*, 561 U.S. 477, 492 (2010)).

⁵³ *Id.* at 15 (citing *Free Enterprise*, 561 U.S. at 492).

⁵⁴ *Id.* at 16 (citing *Parsons v. United States*, 167 U.S. 324, 330 (1897)).

the claim that the Decision of 1789 “became the settled and well understood construction of the Constitution;”⁵⁵ (ii) Daniel Webster, Henry Clay, John Calhoun, Joseph Story, and James Kent were eminent legal thinkers who engaged the same kind of analysis of the text, structure, and history of the Constitution as modern originalists; and (iii) Some Presidentialist scholars invoke these sources from the Age of Jackson to support their own position, so it is only fair to inquire whether such claims of support are accurate.

One will search in vain for sources from the Age of Jackson in the Court’s removal opinions and in most Presidentialist accounts of the removal power.⁵⁶ The sources this paper draws upon in Section IV are entirely absent from Scalia’s dissent in *Morrison*, Roberts’s opinions in *Free Enterprise Fund* and *Seila Law*, and Alito’s opinion in *Collins*. Reasonably enough, the Government did not include these sources in its brief for *Slaughter*.

Sources from the Age of Jackson are largely absent from contemporary constitutional debates because many view them as irrelevant under the Court’s preferred interpretive method of original public meaning originalism. “Originalism maintains both that constitutional text means what it did at the time it was ratified and that this original public meaning is authoritative.”⁵⁷ As Lawrence Solum has explicated, original public meaning “is ‘original’ because it is the meaning conveyed *at the time each provision was framed and ratified* . . . is ‘public’ because it is the meaning that was made accessible to ordinary folk, *citizens who were competent speakers of American English* . . . and is ‘meaning’ . . . because it is the *content* (set of propositions) conveyed by the text to the public.”⁵⁸ While Founding Era sources and practices are often drawn upon to ascertain how contemporaries understood the Constitution’s provisions,⁵⁹ sources from the Age of Jackson are considered too attenuated. For example, although McConnell is willing to examine an 1823 Opinion by Attorney General William Wirt and an 1831 Opinion by Attorney

⁵⁵ *Id.* at 15 (citing *Free Enterprise*, 561 U.S. at 492).

⁵⁶ Calabresi & Yoo are a notable exception.

⁵⁷ Amy Coney Barrett, Originalism and Stare Decisis, 92 NOTRE DAME L. REV. 1921, 1921 (2017).

⁵⁸ Lawrence B. Solum, *Original Public Meaning*, 2023 MICH. ST. L. REV. 807, 809-10, 826 (2023).

⁵⁹ *Zivotofsky ex rel. Zivotofsky v. Kerry*, 576 U.S. 1, 23 (2015) (“In separation of powers cases this Court has often ‘put significant weight upon historical practice.’”) (quoting *NLRB v. Noel Canning*, 573 U.S. 513, 524 (2014)); WILLIAM BAUDE, JACK L. GOLDSMITH, JOHN F. MANNING, JAMES E. PFANDER & AMANDA L. TYLER, HART & WESCHLER’S THE FEDERAL COURTS AND THE FEDERAL SYSTEM 414 n.6 (8th ed. 2025) (“The court, for example, gives weight to early legislative constructions of the Constitution, because such interpretations may capture nuances and shared understandings that can become lost over time.”).

General Roger Taney to understand what “position prevailed in the antebellum republic,” he concludes that these sources are “too late to cast light on original understanding.”⁶⁰

This paper disagrees. Sources from the Age of Jackson remain relevant for constitutional interpretation. For one thing, they are necessary to evaluate claims about the import of the “Decision of 1789.”

Recent scholarship has raised serious questions about what meaning—if any—the Decision of 1789 had for contemporaries. As J. David Alvis, Jeremy Bailey, and F. Flagg Taylor have noted, “the spectrum of opinion during the Decision of 1789 was quite broad . . . and . . . covered not only the specific question of the removal power but also the very nature of executive power and the system of separated powers”⁶¹ Not only was the range of opinion broad; the exact positions of participants were often unclear. Some of the delegates that argued for Presidential removal power believed it was constitutionally vested with the executive while others believed Congress was empowered to delegate such authority to the President.⁶² Delegates were often inconsistent in their positions: “Votes changed over the course of four days, often with no reasons given”⁶³ At the end of it all, the foreign affairs bill providing the President with removal power prevailed in the House 29-22, and tied in the Senate 10-10, where the tie-breaking vote was cast in favor of Presidential control by Vice President John Adams.⁶⁴ Discerning clarity and consensus on the constitutional location of the removal power is difficult enough from these tight voting lines. It is made even more difficult by Jed Shugerman’s research demonstrating that only 15 of the 51 votes in the House could be considered Presidentialist, a subset of which was likely “motivated more by a strategy of ambiguity simply to win passage in the Senate, regardless of which theory the members adhered to.”⁶⁵ Even the weighty title of

⁶⁰ MCCONNELL, *supra* note 7, at 347.

⁶¹ J. DAVID ALVIS, JEREMY D. BAILEY & F. FLAGG TAYLOR, *THE CONTESTED REMOVAL POWER, 1789-2010* 47 (2013).

⁶² Brief for Professor Andrea Scoseria Katz and Jonathan Gienapp Supporting Respondents at 11, *Trump v. Slaughter* (2026) (No. 25-332). (“Supporters of vesting this removal authority in the President had different, even incompatible, reasons for their positions.”).

⁶³ *Id.* at 12.

⁶⁴ Jed H. Shugerman, *The Indecisions of 1789: Inconstant Originalism and Strategic Ambiguity*, 171 U. PA. L. REV. 753, 759, 796 (2023).

⁶⁵ *Id.* at 796.

“The Decision of 1789” was likely not coined until the Age of Jackson: As Prakash notes, the earliest recorded use of the term comes from an 1835 speech by Daniel Webster.⁶⁶

It is necessary to consult sources from the Age of Jackson to determine whether the Court is correct in their contentions that “the Decision of 1789” “soon became the settled and well understood construction of the Constitution”⁶⁷ and that “[t]he ‘universal practice of government conformed to it, and statesmen and jurists accepted its ‘correctness.’”⁶⁸ As Andrea Katz has noted, defenders of the Presidentialist position “seek to prove that all swans are white—that is, that early American laws, political practice, and thought established, and did not meaningfully depart, from a constitutional baseline where the power to remove always belonged to the President and was never taken away or limited.”⁶⁹ Critics of this position do not need to show that there was a consensus against it, for even showing prominent historical counterexamples undercuts this claim of a constitutional baseline of Presidential removal.⁷⁰ If, as this paper argues, the removal power went largely undiscussed until the Presidency of Andrew Jackson, and when it was discussed the most prominent members of the Senate (“the Great Triumvirate”⁷¹ of Henry Clay, Daniel Webster, and John Calhoun) and the most eminent Constitutional commentators (Joseph Story and James Kent) either outright rejected or highly questioned the President’s ability to remove executive officers, then this historical disagreement is a serious problem for the Presidentialist position.

Aside from aiding in evaluation of the Court’s claims about the Decision of 1789, the Age of Jackson was replete with erudite legal thinkers that engaged in substantive and incisive interpretations of the Constitution. These sources often engaged in the same kind of textual, structural, and historical analysis as modern constitutional scholars. They parsed the key provisions of the Constitution, assessed its structure, and combed through the 1789 debates and early Congressional enactments. There is no reason to ignore their contributions. To

⁶⁶ Prakash, *supra* note 40, at 1022 n. 4; *see also* MCCONNELL, *supra* note 7, at 163 (“Since the time of Daniel Webster, this debate and vote has been called ‘The Decision of 1789.’”).

⁶⁷ *Free Enterprise Fund v. PCAOB*, 561 U.S. 477, 492 (2010) (internal quotations removed); *see also* *Seila Law v. CFPB*, 140 S. Ct. 2183, 2197 (2020).

⁶⁸ Brief for Petitioner at 16, *Trump v. Slaughter* (2026) (No. 25-332) (citing *Parsons v. United States*, 167 U.S. 324, 330 (1897)).

⁶⁹ Andrea Katz, Noah Rosenblum & Jane Manners, *Disagreement and Historical Argument or How Not to Think About Removal*, 58 U. MICH. J.L. REFORM 555, 560-61 (2025).

⁷⁰ *Id.* at 561.

⁷¹ This appellation comes from MERRILL D. PETERSON, *THE GREAT TRIUMVIRATE: WEBSTER, CLAY, AND CALHOUN* (1987).

categorically rule out the analyses of Daniel Webster, Henry Clay, Joseph Story, etc. as perhaps interesting but irrelevant to constitutional interpretation due to temporal attenuation would be a great and unnecessarily self-imposed loss.

Furthermore, when Presidentialists claim that “[t]he ‘universal practice of government conformed to [the Presidentialist position], and statesmen and jurists accepted its ‘correctness’”⁷² and some Presidentialist scholars cite Age of Jackson sources to support their own position, then it only seems fair to evaluate whether these claims are accurate. For example, Calabresi & Yoo insist that “[e]minent constitutional commentators, such as Joseph Story and James Kent, regarded this series of Congressional decisions . . . as definitively establishing that removal was an inherent executive power vested in the President by Article II of the Constitution.”⁷³ They also assert that “[e]ven constitutional authorities, such as Daniel Webster, who would have reached a different conclusion had they confronted the issue as a matter of first impression, thought that the issue of whether the Constitution vested the removal power in the President was a settled point”⁷⁴ To evaluate these claims, these sources must not be given cursory treatment but instead their body of statements on the pillars of the Presidentialist position—the Decision of 1789, the Executive Power Clause, the Take Care Clause—must be fully evaluated.

IV. EVIDENCE FROM THE AGE OF JACKSON REFUTES THE CLAIM THAT THE PRESIDENTIALIST POSITION WAS THE “SETTLED AND WELL UNDERSTOOD CONSTRUCTION OF THE CONSTITUTION”

Prominent constitutional authorities and statesman during the Age of Jackson rejected the Presidentialist view of the removal power. This section does not aim to provide a history of the period and thus does not proceed chronologically.⁷⁵ Instead, it organizes and presents the germane comments of prominent figures like Daniel Webster, Henry Clay, John Calhoun, and Joseph Story on each premise of the Presidentialist position: The Decision of 1789, the Executive Power Clause, and the Take Care Clause. It is certainly not a comprehensive account of their body of writings and public statements on the issue, but the evidence this paper presents

⁷² Brief for Petitioner at 16, *Trump v. Slaughter* (2026) (No. 25-332) (citing *Parsons v. United States*, 167 U.S. 324, 330 (1897)).

⁷³ CALABRESI & YOO, *supra* note 7, at 35.

⁷⁴ *Id.* at 36 (internal quotations removed).

⁷⁵ For an excellent general history of removal contestation during this era, see ALVIS ET AL., *supra* note 61, at 73-105 (“Jackson to Johnson: The Rise of Congressional Delegation”).

is more than sufficient to refute the claim that the Presidentialist position was the “settled and well understood construction of the Constitution.”⁷⁶

Moreover, many of the critiques of the Presidentialist position on the removal power during the Age of Jackson comport with recent original public meaning scholarship. The views set forth by Webster, Clay, Calhoun, and others were not merely opportunistic arguments from people who hated Andrew Jackson (though many of them probably did).⁷⁷ Instead, they were arguments about the text, history, and structure of the Constitution that are affirmed by rigorous analyses of original public meaning. While this does not prove that the Presidentialist position is wrong, it should illustrate why this paper’s sources remain relevant and insightful for constitutional interpretation of the removal issue.

The section proceeds as follows. First, it provides some brief historical background to explain why the removal power again became a salient issue during the Presidency of Andrew Jackson and why, prior to this time, it was so little discussed. Second, the section shows how these prominent constitutional authorities rejected each premise of the Presidentialist position on removal and identifies where they instead thought the power resided.

A. Absence of Debate over the President’s Removal Power After “The Decision of 1789” Reflected Limited Use of the Removal Power Rather than a Consensus on the Presidentialist Position

Absence of debate over the removal power prior to the Presidency of Andrew Jackson reflected the limited and judicious use of the removal power rather than general acquiescence in the Presidentialist position. Between the debates of 1789 and the Presidency of Andrew Jackson, the removal power lay mostly dormant.⁷⁸ While every President during this time appointed supporters to office, the “prevailing custom” was to leave the predecessor’s appointments in office—other than top-level policymaking positions—and instead replace them “gradually

⁷⁶ *Free Enterprise Fund v. PCAOB*, 561 U.S. 477, 492 (2010).

⁷⁷ Calabresi & Yoo, for example, question their motives. When discussing criticism of Andrew Jackson’s exercise of the removal power, they describe Clay, Calhoun, and Webster as “each driven by Presidential ambition.” CALABRESI & YOO, *supra* note 7, at 119.

⁷⁸ One notable exception was a report of Senator Thomas Hart Benton in 1826 for the Committee to Reduce Executive Patronage, part of which included a proposed bill that would require the President to provide reasons to the Senate for removal of all Senate-confirmed officers. *Report from the Select Committee*, Senate, 19th Cong., 1st. Sess. 88 (1826). But generally it appears that Henry Clay was correct that “the propriety of that concession had never, he believed, been directly and deliberately considered.” 10 REG. DEB. 834 (1834).

through attrition.”⁷⁹ Though appointment of supporters was nothing new, Jackson’s extensive use of the removal power was unprecedented.⁸⁰ During Jackson’s campaign in 1828, the pro-Jackson *United States Telegram*, had pronounced that Jackson would use patronage to “REWARD HIS FRIENDS AND PUNISH HIS ENEMIES,”⁸¹ a practice hitherto unknown.⁸² Even President Jefferson, who had faced an executive branch staffed almost entirely by members of the opposition Federalist party, had largely followed the practice of gradual attrition.⁸³ While Jefferson had sought to destroy a political monopoly and establish an equilibrium in the composition of the executive branch, Jackson sought to destroy any equilibrium and establish a political monopoly.⁸⁴

Two issues revived debate over the President’s power to remove executive officers: (i) Jackson’s patronage policies and (ii) his efforts to destroy the Second Bank of the United States (BUS). First, as promised in his inaugural address, Jackson quickly began to purge federal officers.⁸⁵ “According to one set of statistics, Jackson removed 919 federal officials during his first year; this represented about 10 percent of all government employees. The precise number removed is subject to confusion, but it was more than all his predecessors had done in the previous forty years.”⁸⁶ As Daniel Walker Howe has observed, the rapid turnover from Jackson’s patronage policies resulted in a bureaucracy that was less experienced and motivated and “over the long term the spoils system diminished both the competence and the prestige of public service.”⁸⁷

⁷⁹ HOWE, *supra* note 6, at 332-33; Brief for Professor Andrea Scoseria Katz and Jonathan Gienapp Supporting Respondents at 19-20, *Trump v. Slaughter* (2026) (No. 25-332) (noting that “[b]etween 1789 and 1829, Presidents seldom removed officers, a fact that suggests ‘beyond question that the power to remove was confined to cases of moral delinquency.’”) (citing LEONARD D. WHITE, *THE JEFFERSONIANS: A STUDY IN ADMINISTRATIVE HISTORY*, 1801-1829 381 (1951)).

⁸⁰ HOWE, *supra* note 6, at 333; JOSEPH STORY, *COMMENTARIES ON THE CONSTITUTION OF THE UNITED STATES* 395-96 (1833).

⁸¹ HOWE, *supra* note 6, at 331.

⁸² Henry Clay, *Fowler’s Garden Speech* (May 16, 1829), in ROBERT SEAGER II, ED., *PAPERS OF HENRY CLAY* 43 (1984). (“[D]uring the whole period of [the John Quincy Adams administration], not a solitary officer of the government, from Maine to Louisiana, within my knowledge, was dismissed on account of his political opinions.”).

⁸³ HOWE, *supra* note 6, at 333; Clay, *supra* note 82, at 49.

⁸⁴ Clay, *supra* note 82, at 49.

⁸⁵ HOWE, *supra* note 6, at 331.

⁸⁶ *Id.* at 333; *see also* 11 REG. DEB. 519 (1835) (Clay) (“Mr. Clay here proceeded to recite from a memorandum the number of officers removed under the different Presidents, from Washington down . . . it was inconsiderable under all the administrations prior to the present; but under that of General Jackson the number of removals amounted to more than two thousand—of which some five or six hundred were postmasters.”).

⁸⁷ HOWE, *supra* note 6, at 334.

Second, Jackson sought to “kill” the Second Bank of the United States.⁸⁸ In July 1832, Congress passed a measure to extend the Bank’s charter until 1851. Jackson, who distrusted banks and hated the BUS in particular, vetoed the measure.⁸⁹ Jackson interpreted his reelection in 1832 as “a decision of the people against the bank.”⁹⁰ Even though the Bank’s charter ran until 1836, Jackson decided to hasten the bank’s demise by removing the Government’s deposits.⁹¹ When Secretary of the Treasury, William Duane, refused to follow the President’s orders, Jackson fired the Secretary and replaced him with the more pliant Roger Taney, who initiated the process of removing deposits.⁹² In response, the Senate, led by the “Great Triumvirate” of Henry Clay, Daniel Webster, and John Calhoun debated and denounced the President’s action, passing the only motion of censure on a President in American history in March 1834.⁹³ Jackson and his cabinet formulated a formal protest, delivered to the Senate in April, which defended the prerogatives of the President in Presidentialist terms:

“By the Constitution ‘the executive power is vested in a President of the United States.’ Among the duties imposed upon him, and which he is sworn to perform, is that of ‘taking care that the laws be faithfully executed.’ Being thus made responsible for the entire action of the executive department, it was but reasonable that the power of appointing, overseeing, and controlling those who execute the laws—a power in its nature executive—should remain in his hands.”⁹⁴

Together, Jackson’s policies elicited extended debate in the Senate over the proper constitutional location of the removal power. These debates, discussed in the following sections, display a range of views and—notably—outright rejection of the Presidentialist position by many, including the triumvirate of Clay, Webster, and Calhoun.

⁸⁸ *Id.* at 379 (citing MARTIN VAN BUREN, AUTOBIOGRAPHY 625 (1920) (John Clement Fitzpatrick ed.) (“‘The bank is trying to kill me,’ the old warrior glowered, *but I will kill it!*”). The Second Bank of the United States (BUS), the largest corporation in the country, handled the federal government’s financial transactions, issued its own paper currency that was exchangeable for gold and silver, and made loans. “The BUS was evolving into a modern central bank; that is, it could expand or contract the money supply so as to mitigate . . . the swings of the business cycle.” *Id.* at 374.

⁸⁹ HOWE, *supra* note 6, at 377.

⁹⁰ *Id.* at 386.

⁹¹ *Id.* at 387; PETERSON, *supra* note 71, at 238-239 (“By cutting off the lifeblood of the Monster he hoped to destroy its capacity for further injury and squelch opposition hopes for its recharter.”).

⁹² HOWE, *supra* note 6, at 388.

⁹³ HOWE, *supra* note 6, at 389; Daniel Webster, *The President’s Protest* (June 7, 1834) in CHARLES M. WILTSE & ALAN R. BEROLZHEIMER, ED., PAPERS OF DANIEL WEBSTER: SPEECHES AND FORMAL WRITINGS 2: 33 (1988).

⁹⁴ JAMES RICHARDSON, ED., A COMPILATION OF THE MESSAGES AND PAPERS OF THE PRESIDENTS 90 (1897); Webster, *President’s Protest*, *supra* note 93, 33-34.

In sum, the removal power was scarcely discussed prior to Jackson's administration because its use by previous Presidents was limited and uncontroversial—not because legal authorities had congealed around the Presidentialist position. Story, Clay, and Calhoun each remarked upon how infrequently the removal power had been invoked and ascribed to this the appearance of a general acceptance of the Presidentialist position. In his *Commentaries on the Constitution*, Joseph Story explained: “Nor is this general acquiescence and silence without a satisfactory explanation . . . Until a very recent period, the power had been exercised in few cases, and generally in such, as led to their own vindication. . . .”⁹⁵

B. Leading Authorities During the Age of Jackson Rejected the Presidentialist Position

Prominent constitutional authorities during the Age of Jackson rejected the tenets of the Presidentialist position on removals. First, they thought the Decision of 1789 was decided incorrectly and rejected the notion that it had settled the issue. Second, they rejected a substantive reading of the Executive Power Clause that would include the power of removal and instead articulated an enumerationist reading of Article II. Third, they construed the Take Care Clause as a limit on Presidential power—precluding him from removing officers that were faithfully executing the law and preserving individual judgment delegated by Congress to executive officers. Fourth, they interpreted the Constitution to preserve a role for Congress in removals, either because they located the source of the removal power in the Appointments Clause (where it was shared by the President and the Senate) or in the Necessary and Proper Clauses (where the power was given to Congress).

i. “The Decision of 1789”: A Single, Erroneous, Inconclusive Precedent

Joseph Story and the Senate Triumvirate (i) identified the ambiguity and contingency of the Decision of 1789, (ii) challenged its correctness, and (iii) rejected the claim that it had settled the issue in a way that prevented Congress from adopting a non-Presidentialist position on the removal power.

⁹⁵ STORY, *supra* note 80, at 395-96 (“Since the induction into office of President Jackson, an opposite course has been pursued.”); *see also* 11 REG. DEB. 513 (1835) (Clay) (“It has never been reconsidered; because, under the mild administrations of the predecessors of the President, it was not abused but generally applied to cases to which the power was justly applicable.”); 11 REG. DEB. 555 (1835) (Calhoun) (“Relying upon the early decision of the question, and the long acquiescence in that decision, I had concluded, without examination, that the decision had not been disturbed, because it rested upon principles too clear and strong to admit of doubt . . . I remained passively under this impression until it became necessary, during the last session, to examine the question . . .”).

First, they (like modern commentators⁹⁶) recognized that it was difficult to discern a clear constitutional lesson from a tight vote with multiple explanations. In his *Commentaries on the Constitution* (1833), Joseph Story stressed that “the Decision of 1789” came down to a tie-breaking vote by a member of the executive branch, Vice President John Adams.⁹⁷ He also stressed the contingency of the decision on the faith many of the first Congressman placed in George Washington to judiciously exercise the powers of his office: “That the final decision of this question so made was greatly influenced by the exalted character of the President, then in office, was asserted at the time, and has always been believed.”⁹⁸ In speeches on the Senate floor on March 10, 1834 and February 18, 1835, Henry Clay also stressed the tight voting lines of the 1789 decision on the Department of Foreign Affairs.⁹⁹ He too cited the pivotal role of the first President’s character, noting that the concession of removal had been “improvidently made” by the First Congress “in consequence of the unbounded confidence reposed” in George Washington.

Second, if the Decision of 1789 did stand for the proposition that the Constitution gave the President the power of removal, they viewed this as an erroneous reading of the document. In his Senate speech on March 10, 1834, Clay averred that he “felt firmly convinced that [the constitution] did not grant any such power to the President” and that “it was sustained in the first Congress as an implied or constructive power.”¹⁰⁰ Emphasizing his point, Clay declared that “he felt himself authorized to pronounce that there was not another instance among all the constructive power which had been controverted, of one which has so little foundation to rest upon as this power of removal at pleasure of the President.”¹⁰¹ The first of Clay’s Four Senate Resolutions was unequivocal: “Resolved, That the Constitution of the United States does not vest in the President power to remove at his pleasure officers under the Government of the United States, whose offices have been established by law.”¹⁰² Similarly, in his February 16,

⁹⁶ See *infra* Part II.A.iii.

⁹⁷ STORY, *supra* note 80, at 394.

⁹⁸ STORY, *supra* note 80, at 394. Clay too would stress the pivotal influence of George Washington. 11 REG. DEB. 519 (1835) (the decision was made “under the influence of a confidence never misplaced in an illustrious individual . . .”).

⁹⁹ 10 REG. DEB. 834 (1834); 11 REG. DEB. 518-19 (1835) (“The precedent of 1789 was established in the House of Representative against the opinion of a large and able minority and in the Senate by the casting vote of the Vice President.”).

¹⁰⁰ 10 REG. DEB. 834 (1834).

¹⁰¹ *Id.*

¹⁰² *Id.* at 835.

1835 Senate speech, Daniel Webster unequivocally declared that the Decision of 1789 was wrong: “The decision of 1789, which separated the power of removal from the power of appointment, was founded on an erroneous construction of the Constitution”¹⁰³ John Calhoun, speaking two days after Webster, stated that although he had begun his examination of the debates of 1789 with the assumption that the Presidentialist position was correct, “I was struck, on reading the debate, with the superiority of the argument of those who contended that the power was not vested by the Constitution in the Executive.”¹⁰⁴

Third, they rejected the idea that the Decision of 1789 had set an irreversible precedent and settled the issue in favor of Presidential removal. When Clay called for a review of the constitutional powers of the President and Congress in his March 10, 1834 speech, he hoped that executive prerogative supporters “would not entrench themselves behind one solitary precedent” because “he did not think that a single precedent, without further examination into the Constitution, ought to be allowed to transform our free government into a practical despotism.”¹⁰⁵ The second of Clay’s Four Senate Resolves declared: “Resolved, That, in all cases of offices created by law, the tenure of holding which is not prescribed by the constitution, Congress is authorized by the Constitution to prescribe the tenure, terms, and conditions on which they are to be holden.”¹⁰⁶ Clay echoed this point again in his February 18, 1835 Senate floor speech, stating that “a solitary precedent, established as this was by an equal vote of one branch, and a powerful minority in the other, under the influence of a confidence never misplaced in an illustrious individual, and which has never been re-examined, cannot be conclusive.”¹⁰⁷

Webster also vociferously denied that the Decision of 1789 had settled the issue as a matter of constitutional law. Webster did indeed concede that the Presidentialists had prevailed in the 1789 contest and that this decision had been left undisturbed.¹⁰⁸ For that reason, he did not believe that Jackson’s exercise of the removal power was unconstitutional “according to the

¹⁰³ Daniel Webster, *The Appointing and Removing Power* (February 16, 1835), in CHARLES M. WILTSE & ALAN R. BEROLZHEIMER, ED., *PAPERS OF DANIEL WEBSTER: SPEECHES AND FORMAL WRITINGS* 2: 87 (1988).

¹⁰⁴ 11 REG. DEB. 555 (1835).

¹⁰⁵ 10 REG. DEB. 835 (1834).

¹⁰⁶ *Id.* at 835.

¹⁰⁷ 11 REG. DEB. 519 (1835).

¹⁰⁸ Webster, *President’s Protest*, *supra* note 93, at 36 (“Although I disapprove of the removal altogether, yet the power of removal does exist in the President, according to the established construction of the Constitution . . .”).

established construction of the constitution.”¹⁰⁹ He considered it “a settled point; settled by construction, settled by precedent, settled by the practice of the government, and settled by statute.”¹¹⁰ But while Webster may have viewed Jackson as acting in line with established precedent, he rejected the idea that the precedent settled the issue. In fact, Webster not only thought that “the original decision was wrong” but also “believe[d] it to be within the just power of Congress to reverse the decision of 1789, and I mean to hold myself at liberty to act, hereafter, upon that question, as I shall think the safety of the government and of the Constitution may require.”¹¹¹

While Story’s position was a little more ambiguous, he certainly did not regard the Decision of 1789 as “definitely establishing” removal as an “inherent executive power.”¹¹² While Story delineated both sides of the 1789 debate in his *Commentaries*, he evinced a clear preference for the opponents of the executive power view of removal: “[I]t is utterly impossible not to feel, that, if this unlimited power of removal does exist, it may be made, in the hands of a bold and designing man, of high ambition, and feeble principle, an instrument of the worst oppression, and most vindictive vengeance.”¹¹³ Story considered the issue unresolved: “Whether the predictions of the original advocates of the executive power, or those of the opposition of it, are likely, in the future progress of the government, to be realized, must be left to the sober

¹⁰⁹ *Id.*; Webster, *The Appointing and Removing Power*, *supra* note 103, at 79 (he did not deny that “at the present moment,” the President could remove officers at will “because the early decision adopted that construction and the laws have since uniformly sanctioned it.”).

¹¹⁰ Webster, *The Appointing and Removing Power*, *supra* note 103, at 79. Calabresi & Yoo focus entirely on this statement to the exclusion of Webster’s full position. See CALABRESI & YOO, *supra* note 7, at 36 (“Even constitutional authorities, such as Daniel Webster, who would have reached a different conclusion had they confronted the issue as a matter of first impression, thought that the issue of whether the Constitution vested the removal power in the President was ‘a settled point, settled by construction, settled by precedent, settled by the practice of the Government, settled by legislation.’”).

¹¹¹ Webster, *The Appointing and Removing Power*, *supra* note 103, at 79, 88 (“It appears to me, however, after thorough and repeated and conscientious examination, that an erroneous interpretation was given to the Constitution, in this respect, by the decision of the first Congress.”).

¹¹² *Contra* CALABRESI & YOO, *supra* note 7, at 35 (“Joseph Story . . . regarded this series of Congressional decision, which came to be known as the Decision of 1789, as definitely establishing that removal was an inherent executive power vested in the President by Article II of the Constitution.”).

¹¹³ STORY, *supra* note 80, at 391. As further evidence of Story’s true position, consider his comment that “It should never be forgotten, that in a republican government offices are established, and are to be filled, not to gratify private interests and private attachments . . . not for cringing favorites, or court sycophants; but for the purposes of the highest public good; to give dignity, strength, purity, and energy to the administration of the laws.” *Id.* at 376. See also ALVIS ET AL., *supra* note 61, at 79 (“As Story put it, executive control of removals would undermine effective administration by rewarding ‘fawning sycophants’ over ‘worthier and able men’ and encourage office seekers to ‘delude or deceive the people’ thus ‘corrupting’ elections ‘at their very source.’”).

judgement of the community, and to the impartial award of time.”¹¹⁴ Story acknowledged that perhaps too much time had elapsed since the Decision of 1789 to make a change of tack on this issue likely, but he certainly did not consider such a change barred by the constitution: “If there has been any aberration from the true constitutional exposition of the power of removal (which the reader must decide for himself), it will be difficult, and perhaps impracticable, after forty years’ experience, to recall the practice to the correct theory.”¹¹⁵

ii. A Nonsubstantive Reading of the Executive Power Clause

These constitutional authorities also rejected the substantive reading of the Executive Power Clause. Indeed, they addressed the same arguments the Court has now accepted. As Clay characterized the Presidentialist position in 1835, “It has been argued that the power of removal from office is an executive power; and that all executive power is vested in the President; and that he is to see that the laws are faithfully executed, which, it is contended, he cannot do, unless, at his pleasure, he may dismiss any subordinate officer.”¹¹⁶ Against such claims, they (i) rejected the argument that the clause incorporated the powers of other executives at the time of the Framing and (ii) adopted an enumerationist view of executive power in Article II, similar to the traditional reading of legislative power in Article I.

Webster and Clay rejected the argument that the Executive Power Clause implicitly incorporated the powers of other chief executives known to the Framers. Webster, for example, rejected Jackson’s argument that removal was “an original executive power left unchecked by the Constitution.”¹¹⁷ Webster was perplexed by this claim: “I should be glad to know how the President gets possession of any power by a title earlier, or more original, than the grant of the Constitution.”¹¹⁸ Webster stated that the President was reasoning based on the British Constitution and the executive powers held by the crown. But Webster stated that this was entirely the wrong approach because the U.S. Constitution was unlike the British Constitution. Webster “distrust[ed] altogether British precedents on questions such as this” because unlike the British system, where checks were being imposed on preexisting authority, when examining the

¹¹⁴ STORY, *supra* note 80, at 397.

¹¹⁵ *Id.*

¹¹⁶ 11 REG. DEB. 513 (1835).

¹¹⁷ Webster, *President’s Protest*, *supra* note 93, at 34.

¹¹⁸ *Id.* at 66.

U.S. Constitution “[w]e are inquiring what extent of power that Constitution has *granted*.”¹¹⁹ With a government of delegated powers, like the one created by the U.S. Constitution, “[t]he grant of power, the whole source of power, as well as the restrictions and limitations which are imposed on it, is made in and by the Constitution . . . It has no other origin.”¹²⁰

Further, Webster argued that “executive power” took so many forms that merely pointing to the Executive Power Clause could not answer whether removal belonged to the President. The Framers, Webster observed, had many potential examples of executive power on which to draw: “What model or example had the Framers . . . in their minds?” England, France, Russia, Montesquieu, Burlamaqui, De Lolme? “All of these differ from one another as to the extent of the executive power of government.”¹²¹ For Webster, executive power was too indefinite “that the written Constitution of a limited government can be supposed to have conferred it in the lump.”¹²² To Clay, it was unthinkable that the Framers had conferred the powers of existing monarchs and other chief magistrates—so much so that he dared his opponents to avow such a position.¹²³

Instead, the Great Triumvirate understood Article II to create an executive of enumerated powers. They argued that the executive was no exception to the rule that the U.S. Constitution created a government of delegated powers.¹²⁴ To understand the extent of the executive power, argued Webster, one needed to examine the Constitution and “learn what the executive power is . . . either by express words or necessary implication.”¹²⁵ Webster recognized a parallel between

¹¹⁹ *Id.* at 66.

¹²⁰ *Id.* at 66.

¹²¹ Webster, *The Appointing and Removing Power*, *supra* note 103, at 80.

¹²² *Id.* at 80; *see also* 10 REG. DEB. 68 (1833) (Clay) (“Our executive power . . . must be looked for in the constitution, which has created and modified it, and not in the forms in which executive power practically exists in other countries, nor in the nature which is supposed to belong to it in the writings of Montesquieu, or any other speculative author.”); *see also* 11 REG. DEB. 363 (1835) (George Poindexter) (“He [Jackson] says, ‘all executive power is vested in the President,’ and then, turning to the pages of Vattel, Grotius, Pufendorf, or Blackstone, and informing himself of the nature and extent of the powers defined to be executive, he unhesitatingly appropriates the whole of them to himself . . . He disdains to trouble himself with the restraints and limitation put on his department by the Framers of the Constitution . . .”).

¹²³ 11 REG. DEB. 516 (1835) (“Do gentlemen mean by inherent power, such power as is exercised by the monarchs or chief magistrates of other countries? If that be their meaning they should avow it.”).

¹²⁴ *See* Webster, *President’s Protest*, *supra* note 93, at 68 (“Our constitutions are not made to limit and restrain preexisting authority. They are the instruments by which the people confer power on their own servants.”); 10 REG. DEB. 68 (1833) (Clay) (observing that the federal government “has no power but granted power; and the power granted must be found in the Constitution, the instrument granting it.”).

¹²⁵ Webster, *President’s Protest*, *supra* note 93, at 65.

the structure of the first two articles of the Constitution.¹²⁶ Just like Article I, Article II identified which body would possess power, provided a mode of selection, and then “immediately proceeds to enumerate, specifically, the powers which he shall possess and exercise, and the duties which he shall perform.”¹²⁷ Just as granting legislative power in Article I did not vest all legislative powers in Congress, nor did the grant of judicial power vest all judicial power in Article III, “the Constitution itself does not rest satisfied with these general words” and instead “immediately goes into particulars, and carefully enumerates the several authorities which the President shall possess.”¹²⁸ The Executive Power Clause, argued Webster, like the clauses granting legislative and judicial power, “amount to no more than naming the departments.”¹²⁹

Clay made an identical argument. The Constitution created a government of delegated authority with “no powers but those that are express or incidental.”¹³⁰ Just as Article I enumerated the specific legislative powers granted to Congress, Article II enumerated the executive powers granted to the President. In neither case “does the preliminary clause convey any power, but the powers of the several departments are to be sought for in the subsequent provisions.”¹³¹

Calhoun reasoned that because there was no explicit grant of the removal power to the President, the Executive Power Clause could not implicitly confer it because the Constitution specified that Congress was the only source of implied powers. Article II, unlike Article I, includes nothing like the Necessary and Proper Clauses. Thus, in a government of delegated authority, “the President has no right to exercise any implied or constructive power. I speak upon the authority of the Constitution itself, which, by an express grant, has vested all the implied and constructive powers in Congress, and in Congress alone.”¹³²

¹²⁶ Webster, *The Appointing and Removing Power*, *supra* note 103, at 81 (“I consider the language of this article, therefore, precisely analogous, to that in which the legislature is created . . .”).

¹²⁷ *Id.*

¹²⁸ *Id.* at 81 (“But enumeration, specification, particularization, was evidently the design of the Framers of the Constitution . . . I do not, therefore, regard the declaration that the executive power shall be vested in a President as being any grant at all; any more than the declaration that the legislative power shall be vested in Congress constitutes, by itself, a grant of such power.”).

¹²⁹ *Id.* at 82.

¹³⁰ 11 REG. DEB. 515 (1835).

¹³¹ *Id.* at 516 (“What executive power? That which is possessed by any chief magistrate, in any country, or that which speculative writers attribute to the executive head? No such thing. That power, and that only, which the Constitution subsequently assigns to the Chief Magistrate.”).

¹³² 10 REG. DEB. 1641-43 (1834). For further discussion of Calhoun’s Necessary and Proper argument, *see infra* Part IV.B.iv.

Several studies of the original public meaning of the Executive Power Clause support the arguments of Webster, Clay, and Calhoun that the clause is nonsubstantive and does not implicitly incorporate a power of removal. Julian D. Mortensen, for example, conducted an exhaustive original public meaning analysis of the term “executive power.” He searched for every instance of the word root “exec-” in the Documentary History of the Ratification Conventions, the Journals of the Continental Congress, and the letters of the delegates to the Continental Congress—as well as examining state resources and eighteenth-century treatises and dictionaries.¹³³ Based on his research, Mortenson concluded that the Executive Power Clause was a “substantively empty vessel.” Far from granting an executive a bundle of prerogative powers, such clauses typically authorized executives to “carry out legal instructions created pursuant to some other authority.”¹³⁴ Similarly, Peter Shane, examining the constitutions of states admitted within 15 years of the Constitutional Convention, found that executing the law generally meant “executing the law to the extent and in the manner prescribed by the legislature.”¹³⁵

In his study of early American use of the word “prerogative,” Matthew Steilen examined over 700 American pamphlets, letters, essays, newspapers, and state papers and legislative debates from 1764-1788.¹³⁶ Steilen found that Americans generally used “prerogative” to describe the powers of the British King—such as specific royal powers under the British Constitution and the King’s powers over his subjects’ liberty and property.¹³⁷ Americans contrasted these “royal prerogatives” with the “executive power” they enshrined in the first state constitutions, “which in that context, they conceived as a narrower power to carry out the law.”¹³⁸ Steilen concluded that the Executive Power Clause is “a grant of substantive power, but only ‘executive power’ narrowly conceived—the power to carry out the law.”¹³⁹ In their amicus brief for *Slaughter*, Andrea Katz and Jonathan Gienapp argue that neither the Framers’ models of executive power nor their early enactments support the idea that removal is an “inherent attribute

¹³³ Julian D. Mortenson, *The Executive Power Clause*, 168 U. PA. L. REV. 1269, 1278-79, 1365 (2020).

¹³⁴ *Id.* at 1273.

¹³⁵ Peter M. Shane, *The Originalist Myth of the Unitary Executive*, 19 J. CONST. L. 323, 336, 352 (2016).

¹³⁶ Matthew Steilen, *How to Think Constitutionally about Prerogative: A Study of Early American Usage*, 66 BUFF. L. REV. 557, 562 (2018).

¹³⁷ *Id.* at 563.

¹³⁸ *Id.*

¹³⁹ *Id.* at 566.

of executive authority.”¹⁴⁰ Katz & Gienapp point out that in England there were many officers the King could not legally remove and that officeholding was often treated as a property right at common law, requiring “some act of ceremony” before the removal of certain officers.¹⁴¹ Additionally, the enactments by the first Congresses of statutes that created independent commissions and vested removal power outside the executive branch indicates that removal was not understood to be an inherent aspect of “the executive power.”¹⁴²

iii. The Take Care Clause as a Restraint on the President’s Ability to Remove Officers

Legal authorities during the Age of Jackson also rejected the argument that the removal power was necessary for the President to fulfill his duty to “take care that the laws be faithfully executed.”¹⁴³ Instead, they thought the Take Care Clause (i) prevented the President from removing officers that were faithfully executing the law and (ii) preserved the ability of officers to exercise individual judgment delegated to them by Congress.

These sources interpreted the Take Care Clause to prevent the President from removing officers that were faithfully executing the law. In an 1823 Opinion, Attorney General William Wirt construed the Take Care Clause to preclude the President from intervening when Congress delegated duties to other executive branch officers.¹⁴⁴ The Opinion was elicited by President Monroe, who had inquired into the appropriateness of revising and correcting settlements made by accounting officers of the United States.¹⁴⁵ In Wirt’s interpretation, “The constitutional charge to the President to take care that the laws be faithfully executed, goes no farther . . . than to see that the officer assigned by law performs his duty *faithfully*—that is *honestly*”¹⁴⁶ Thus, if the officers “discharge[d] their duties faithfully, the President has no authority to interfere.”¹⁴⁷ Similarly, during Clay’s speech at Fowler’s Garden on May 16, 1829, he declared that during and since the 1789 debates, “it never was in the contemplation of Congress that the power would or could be applied to the removal of competent, diligent and faithful officers.”¹⁴⁸

¹⁴⁰ Brief for Professor Andrea Scoseria Katz and Jonathan Gienapp Supporting Respondents at 6, 10, *Trump v. Slaughter* (2026) (No. 25-332).

¹⁴¹ *Id.* at 7.

¹⁴² *Id.* at 15-19.

¹⁴³ U.S. CONST. Art II, § 3.

¹⁴⁴ *The President & Accounting Officers*, 1 Op. Att’y Gen. 624, 624 (1823), 1823 WL 538.

¹⁴⁵ *Id.*

¹⁴⁶ *Id.* at 626.

¹⁴⁷ *Id.* at 628.

¹⁴⁸ Clay, *supra* note 82, at 44.

Clay warned of the baleful consequences of making the removal dependent upon adherence to the preferences of the President rather than to the law itself. In such a system, the President would make the greatest public virtue “ardent devotion to him” and when officeholders’ positions were no longer secured by faithful service, it could be expected that they would abuse their trusts and make short use of their tenure to extract private benefits.¹⁴⁹

As these sources understood it, the Take Care Clause preserved individual judgment by officers tasked by Congress with executing the law. When the law granted discretion to such officers, the President’s duty was not to ensure that it conformed with his own preferences, but merely to ensure that the officers were faithfully fulfilling their orders from Congress. Commenting on Jackson’s efforts to remove the bank deposits from the Second Bank of the United States, Joseph Story wrote to Daniel Webster in December 1835 and opined that the Secretary of the Treasury was within his right to refuse such an order: “The law has confided to him a great trust, which it supposes he will perform with fidelity . . . it is an appeal to him to act, as a special agent selected by both parties, when he decides.”¹⁵⁰ Congress had granted discretion to the Secretary of the Treasury and were the President to override that judgment he would not be taking care that the laws were faithfully executed: “[A]ny interference by the President to control or influence his judgment, much more to deter him from exercising his judgment, is, on the part of the President, a departure from his duty”¹⁵¹

Clay and Calhoun were appalled by the idea that the President was entitled to eliminate officers’ independent judgment and to ensure that his own will prevailed throughout the executive branch. For Clay, when the Constitution enjoined the President to “take care that the laws be faithfully executed,” it “required nothing more than this, to employ the means instructed to him to overcome resistance whenever it might be offered to the laws.”¹⁵² The Take Care Clause “imports a mere general superintendence, except where [the President] is specially

¹⁴⁹ *Id.* at 45-47.

¹⁵⁰ Joseph Story to Daniel Webster (December 25, 1833), in CHARLES M. WILTSE & DAVID G. ALLEN, ED., PAPERS OF DANIEL WEBSTER: CORRESPONDENCE 3: 293 (1977).

¹⁵¹ *Id.* (“[T]he President has not the slightest right to interfere with the business. It is taken out of the sphere of Executive Action. It belongs to the Secretary and to him alone”). This view was also shared by Secretary Duane himself. When asked to remove the deposits, Duane protested that Jackson was asking him to do something that would get him (Duane) impeached. Jackson assured him, “A secretary, sir, is merely an executive agent, a subordinate, and you may say so in self-defense.” Unmoved, Duane responded, “In this particular case, Congress confers a discretionary power, and requires reasons if I exercise it. Surely this contemplates responsibility on my part.” HOWE, *supra* note 6, at 388-89.

¹⁵² 10 REG. DEB. 68 (1833).

charged with execution of the law.”¹⁵³ He rejected the argument that the President was entitled to override the discretion granted to officers when they departed from his preferred understanding of the law, declaring that such a doctrine would mean that “everything resolves itself unto the President’s opinion.”¹⁵⁴ Whether the laws of Congress or the judgments of the courts would be enforced would ultimately come down to the President’s personal judgment. Such a reading of the Take Care Clause would enervate the other two branches and would create a “standing army” in the bureaucracy that was “actuated by one spirit, obeying one will, and aiming at one end” in enforcing the President’s will.¹⁵⁵ This would sound the death knell to “all regulated government, to all civil liberty.”¹⁵⁶ Likewise, Calhoun warned that granting the President unlimited removal power would mean “the sixty thousand who now hold employment under Government would become dependent upon him for the means of existence.”¹⁵⁷ Calhoun asked how anyone could fail to see that “a power so unlimited and despotic over this great and powerful corps must tend to corrupt and debase those who compose it, and to convert them into the supple and willing instruments of him who wields it?”¹⁵⁸ Calhoun fulminated against the idea that the President possessed a unique accountability to the people: “What effrontery! What boldness of assertion. The *immediate* representative! Why, he never received a vote from the American people. He was elected by electors.”¹⁵⁹

¹⁵³ 11 REG. DEB. 524 (1835).

¹⁵⁴ 10 REG. DEB. 67 (1833).

¹⁵⁵ 11 REG. DEB. 517, 522 (1835) (“Now, if the President . . . may, in virtue of the injunction to take care that the laws be faithfully executed, prevent the enforcement of any law contrary to the sense in which he understands it, I would ask what powers remain to any other branch of the Government?”).

¹⁵⁶ 10 REG. DEB. 67 (1833). (“[L]et this new heresy be sanctioned, and the President may say to an Auditor or Comptroller, pass this, or reject that item in the account, (such is my opinion of the law;) and if you do not, I will remove you from office.”).

¹⁵⁷ 11 REG. DEB. 557 (1835).

¹⁵⁸ *Id.*

¹⁵⁹ 10 REG. DEB. 1646 (1834). Calhoun was responding to Jackson’s claim to be the “direct representative of the people and their rightful protector.” See PETERSON, *supra* note 71, at 244. *Contra* Seila Law v. CFPB, 140 S. Ct. 2183, 2203 (2020) (“The resulting constitutional strategy is straightforward: divide power everywhere except for the Presidency, and render the President directly accountable to the people through regular elections.”). The Roberts Court’s conception of the Presidency appears anachronistic when considering Michael Klarman’s observations about the original design for Presidential selection. Klarman notes two aspects of the electoral college system chosen by the Delegates at Philadelphia that cut against the idea that Article II was intended or understood by contemporaries to create a directly accountable executive. First, the Convention agreed that if no candidate for President secured a majority of the electors appointed, then the House of Representatives would choose the President from among the top five vote-getters. MICHAEL J. KLARMAN, THE FRAMERS’ COUP 232-33 (2016). Klarman posits that this was expected to be the norm, as Convention delegates believed Presidential candidates would rarely win outright majorities: “The vast geographic scope of the country, combined with the relatively primitive state of transportation and communication, would prevent Presidential candidates from becoming widely known or coordinating their campaigns across states—especially in the absence of national political parties, which the delegates did not assume

Similarly, Webster sought to dismantle the Presidentialist reading of the Take Care Clause. Responding to Jackson's construction of the clause in his Message of Protest to the Senate in 1834, Webster distilled Jackson's proposition that the President "thereby becomes himself responsible for the conduct of every person employed in the government."¹⁶⁰ "The whole responsibility is assumed, in order that it may be more plausibly argued that all officers of government are, not agents of the law, but the President's agents, and therefore responsible to him alone."¹⁶¹ Webster rejected this concept of "responsibility" based on "responsibility to public opinion" and the "liability to be blamed."¹⁶² Such a claim of "responsibility" was little different than Napoleon's claim that "I am the state!"¹⁶³ Instead, argued Webster, the correct concepts of responsibility and faithful execution were with reference *to the laws*, not to the will of the President: "[T]here can be, no substantial responsibility, any further than every individual is answerable, not merely in his reputation . . . but *to the law*, for the faithful discharge of his own appropriate duties."¹⁶⁴

Recent original public meaning scholarship supports the position of Wirt, Webster, Clay, and Story that the Take Care Clause was meant to prevent the President from removing or interfering with officers that were faithfully executing the law. Andrew Kent, Ethan Leib, and Jed Shugerman examined the use of the term "faithful execution" in English law, colonial governments, and state governments under the Confederation Congress.¹⁶⁵ They found that its usage was (i) "repeatedly associated in statutes and other legal documents with true, honest, diligent . . . good faith, and impartial execution of law or office," (ii) often imposed to prevent officeholders from abusing their offices for private gain, and (iii) a prohibition on officeholders

would exist." *Id.* at 232. Second, Klarman notes that Article II left to state legislatures the responsibility to specify the manner in which Presidential electors were chosen. "The Framers probably contemplated that the predominant method of selection would be appointment by state legislatures rather than election by voters." *Id.* at 622-23. It took several decades until most state legislatures provided for direct popular election of Presidential electors. *Id.*

¹⁶⁰ Webster, *President's Protest*, *supra* note 93, at 62.

¹⁶¹ *Id.* at 63.

¹⁶² *Id.* at 64. *Contra* Morrison v. Olson, 487 U.S. 654, 729 (1988) (Scalia, J., dissenting) ("The President is directly dependent on the people, and since there is only *one* President, *he* is responsible . . . The people know whom to blame . . ."); *Seila Law v. CFPB*, 140 S. Ct. 2183, 2203 ("[T]he President's political accountability is enhanced by the solitary nature of the Executive Branch, which provides a single object for the jealousy and watchfulness of the people.") (internal citation removed).

¹⁶³ *Id.* at 65.

¹⁶⁴ *Id.* at 68.

¹⁶⁵ Andrew Kent, Ethan J. Leib, & Jed H. Shugerman, *Faithful Execution and Article II*, 132 HARV. L. REV. 2111, 2120 (2019).

acting *ultra vires*.¹⁶⁶ Together, these duties bore a strong resemblance to fiduciary duties.¹⁶⁷ Far from granting the President the power to remove any officer at will based on the President's own judgment, Kent, Leib, & Shugerman found that the term "faithful execution" was, in fact, a device to limit executive discretion.¹⁶⁸ These findings suggest that Article II is best read to "subordinate Presidential power to Congressional direction, requiring the President to follow the laws, instructions, and authorizations set in motion by the legislature."¹⁶⁹

iv. Where then, the Constitutional Source of the Removal Power? The Appointments Clause or the Necessary and Proper Clauses

These legal thinkers and statesman from the Age of Jackson understood the Constitution to grant Congress at least some control over removals. They located the source of this power in one of two clauses: (i) the Appointments Clause or (ii) the Necessary and Proper Clauses.

Certainly Daniel Webster but also Joseph Story and James Kent are best read as accepting that, as a matter of original meaning, the President and the Senate shared the power of removal through the Appointments Clause. In his January 15, 1830 letter to Joseph Hopkinson, Webster articulated his theory of the removal power as existing incidental to the power of appointment. The President did not possess the removal power because "no such power is expressly given to him by the Constitution, nor is anywhere recognized in it; nor any provision made to guard it from abuse; nor any provision for recording its exercise."¹⁷⁰ Webster reasoned that the power of removal was left unstated because it was not a separate and distinct power from the power of appointment: "The power of removal exists only as consequential to the power of appointment" because the appointment of a new officer superseded the previous commission and authority of the new incumbent.¹⁷¹ In other words, removals happened by virtue of a new appointment, for which the President required the advice and consent of the Senate. Webster honed and delivered this argument again in his speech on the Appointing and Removing Power on February 16, 1835. Rhetorically, Webster asked why the appointment power was explicitly granted while the

¹⁶⁶ *Id.* at 2118.

¹⁶⁷ *Id.* at 2119.

¹⁶⁸ *Id.* at 2120; *see also* Brief for Professor Andrea Scoseria Katz and Jonathan Gienapp Supporting Respondents at 8, *Trump v. Slaughter* (2026) (No. 25-332).

¹⁶⁹ Kent et al., *supra* note 165, at 2120.

¹⁷⁰ Daniel Webster to Joseph Hopkinson (January 15, 1830), in CHARLES M. WILTSE & DAVID G. ALLEN, ED., *PAPERS OF DANIEL WEBSTER: CORRESPONDENCE 3*: 8 (1977).

¹⁷¹ *Id.* at 8.

“closely connected” removal power was left to implication.¹⁷² The answer was simple: “It is not a separate and distinct power . . . It is part of the power of appointment.”¹⁷³ When an officer was appointed and confirmed by the Senate, he simply superseded the previous occupant: “The power of placing one man in office necessarily implies the power of turning another out. . . .”¹⁷⁴ Webster argued that this had, in fact, been “the practice of the government . . . from the first” and declared that his investigation into a “distinct official act of removal” had not been able to uncover “any such proceeding.”¹⁷⁵

Though more ambiguous, James Kent¹⁷⁶ and Joseph Story are best read as recognizing that the Appointments Clause was the proper textual hook for the removal power. In his letter to Webster on January 21, 1830, Kent referenced Federalist No. 77, in which Hamilton staked out the position that the “Senate, in the business of appointments . . . would contribute to the stability of the administration. The consent of that body would be necessary to displace as well as to appoint.”¹⁷⁷ While Kent had heard the 1789 debates and had been convinced by the advocates of Presidential power, he suggested that his mind had now been changed:

“Again, it is a great and general principle in all Jurisprudence that when there is no positive provision in the case regulating the principle, the power that appoints is the power to determine the pleasure of the appointment and the limitation. It is the power to reappoint, and the power to appoint and reappoint, when all else is silent, is the power to remove. I begin to have a strong suspicion that Hamilton was right, as he always was on public questions.”¹⁷⁸

While Kent did go on to say that there was simply too much water under the bridge to upend the Presidentialist position on removals,¹⁷⁹ he appears to have accepted that the correct textual

¹⁷² Webster, *The Appointing and Removing Power*, *supra* note 103, at 82.

¹⁷³ *Id.*

¹⁷⁴ *Id.* at 83.

¹⁷⁵ *Id.* at 82-83.

¹⁷⁶ James Kent was the author of the influential *Commentaries on American Law*.

¹⁷⁷ THE FEDERALIST NO. 77, at 489 (Alexander Hamilton) (Modern Library ed., 2001) (“Those who can best estimate the value of a steady administration, will be most disposed to prize a provision which connects the official existence of public men with the approbation or disapprobation of [the Senate] which, from the greater permanency of its own composition, will in all probability be less subject to inconstancy than any other member of the government.”).

¹⁷⁸ James Kent to Daniel Webster (January 21, 1830), in CHARLES M. WILTSE & DAVID G. ALLEN, ED., PAPERS OF DANIEL WEBSTER: CORRESPONDENCE 3: 12 (1977).

¹⁷⁹ *Id.* (“On the other hand it is too late to call the Presidents power in question, after a declaratory act of Congress and an acquiescence of a half a century.”).

reading was to locate removal as incidental to the appointment power shared by the President and Senate.

Although also somewhat ambiguous, Story is best read as recognizing that the advice and consent position was the correct reading of the Constitution. Story delineated both the Presidentialist and advice and consent positions of the debates in 1789, but rather transparently favored the advice and consent position. He noted that the Constitution was silent on removal and the President's "power to nominate does not naturally, or necessarily include the power to remove; and if the power to appoint does include it, then the latter belongs conjointly to the executive and the Senate."¹⁸⁰ Then "the removal takes place in virtue of the new appointment, by mere operation of law."¹⁸¹ After observing that "this was the doctrine maintained with great earnestness by the Federalist," praising the benefits of this position,¹⁸² and listing all the maladies of unrestricted removal,¹⁸³ Story concluded that, "It was not, therefore, without reason, that, in the animated discussions already alluded to, it was urged, that the power of removal was incident to the power of appointment."¹⁸⁴

Story was unambiguous, however, in his assertion that the "Decision of 1789" had no bearing on "inferior officers," for whom Congress could require the advise and consent of the Senate to remove. Story concluded his discussion of the removal power by noting:

"But at all events, it will be a consolation to those, who love the Union, and honor a devotion to the patriotic discharge of duty, that in regard to 'inferior officers,' (which appellation probably includes ninety-nine out of a hundred of the lucrative offices of government), the remedy for any permanent abuse is still within the power of Congress, by the simple expedient of requiring the consent of the Senate to removals in such cases."¹⁸⁵

¹⁸⁰ STORY, *supra* note 80, at 390.

¹⁸¹ *Id.*

¹⁸² *Id.* ("[I]t had a most material tendency to quiet the just alarms of the overwhelming influence, and arbitrary exercise of this prerogative of the executive, which might prove fatal to the personal independence, and freedom of opinion of public officers, as well as to the public liberties of the country.").

¹⁸³ *Id.* ("[I]t is utterly impossible not to feel, that, if this unlimited power of removal does exist, it may be made, in the hands of a bold and designing man, of high ambition, and feeble principle, an instrument of the worst oppression, and most vindictive vengeance.").

¹⁸⁴ *Id.* at 390, 396 ("Many of the most eminent statesmen in the country have expressed a deliberate opinion, that it is utterly indefensible, and that the only sound interpretation of the Constitution is that avowed upon its adoption; that is to say, that the power of removal belongs to the appointing power."). *See also* ALVIS ET AL., *supra* note 61, at 79 ("Story was not exactly evenhanded in his treatment of the two sides.").

¹⁸⁵ STORY, *supra* note 80, at 397. *Compare* this to Prakash's assertion that the Decision of 1789 reflected the understanding that "removal of executive officers was an executive power, and because the Constitution did not

Story thus communicated a preference for the advise and consent position for removal of Senate-confirmed/principal officers and unequivocally rejected the idea that the President had the constitutional power to remove inferior officers. Though Story did not expound further upon the latter claim in his *Commentaries*,¹⁸⁶ the fact that the most famous jurist of his day took this position makes it difficult to claim that “statesmen and jurists accepted [the] correctness”¹⁸⁷ of the idea that “the President has a constitutional power to remove all executive officers.”¹⁸⁸

Henry Clay and John Calhoun, on the other hand, thought that the Necessary and Proper Clauses¹⁸⁹ gave Congress the power to control (or delegate control) over removals. Clay initially seemed to suspect that the removal power was incidental to appointment, advancing a Senate Resolution in 1834 that instructed the Committee on the Judiciary to “inquire into the expediency of providing, by law, that removal from office shall not, in future, be made without the concurrence of the Senate. . . .”¹⁹⁰ By 1835, however, Clay had staked out the position that Congress possessed the power of removal through the Necessary and Proper Clause. In addition to the fact that Congress “creates the office, defines its duties, and may prescribe its duration,” Clay argued that the Constitution made Congress the “sole depository of implied powers, and . . . no other department or officer possesses any.”¹⁹¹ Clay reasoned that because Congress was the sole depository of implied powers and removal was nowhere expressly mentioned in the Constitution, Congress could regulate it. If it was incidental to the legislative power, it clearly belonged to Congress. And if “it belong[ed] to any other department of the Government, under the cited clause, Congress has the power to legislate upon the subject, and may regulate it, although it could not divest the department altogether of the right.”¹⁹²

constrain or abridge removal authority, the President had the power to remove *all* executive officers unilaterally.” Prakash, *supra* note 40, at 1069 (italics added).

¹⁸⁶ Bamzai & Prakash dismiss Story’s position as being “without any reasoning.” In their view, “It is unclear why Congress’s express power to vest appointment authority over inferior officers comes with implied power to limit the President’s constitutional authority to remove.” Bamzai & Prakash, *supra* note 7, at 1830, 1833.

¹⁸⁷ Brief for Petitioner at 16, *Trump v. Slaughter* (2026) (No. 25-332) (citing *Parsons v. United States*, 167 U.S. 324, 330 (1897)).

¹⁸⁸ Bamzai & Prakash, *supra* note 7, at 1830, n. 536.

¹⁸⁹ U.S. CONST. art I, § 8 (“Congress shall have the Power . . . To make all laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States or in any Department or Officer thereof.”).

¹⁹⁰ 10 REG. DEB. 834 (1834) (“[A]nd, when that body is not in session, the power shall only be exercised provisionally, subject to the consideration of the Senate when it convenes.”).

¹⁹¹ 11 REG. DEB. 518 (1835).

¹⁹² *Id.*

Calhoun expounded upon this principle. If the President had “the power to dismiss,” reasoned Calhoun, it either came from an express grant or it was a power necessary and proper to execute some other expressly granted power.¹⁹³ With the Constitution silent on removal, there was no express grant. Thus, the removal power, “if it exists at all, it must exist as a power necessary and proper to execute some granted power; but if it exists in that character, it belongs to Congress and not to the executive.”¹⁹⁴ Under Calhoun’s reading, even if the removal power could be derived from some power given to the executive, it would still be subject to the control of Congress. Calhoun’s statement is worth quoting in full:

“Mark the fulness of the expression: Congress shall have power to make all laws, *not only to carry into effect the powers expressly delegated to itself, but those delegated to the government, or any department or officer thereof* and of course comprehends the power to pass laws necessary and proper to carry into effect the powers expressly granted to the executive department. It follows, of course, to whatever express grant of power to the executive the power of dismissal may be supposed to attach, whether to that of seeing the law faithfully executed, or to the still more comprehensive grant, as contended for by some, vesting executive powers in the President, the mere fact that it is a power appurtenant to another power, and necessary to carry it into effect, transfers it, by the provisions of the Constitution cited, from the executive to Congress, and places it under the control of Congress, to be regulated in the manner which it may judge best.”¹⁹⁵

Thus, from the premises that (i) the Constitution created a government of delegated powers, (ii) the only powers in the instrument were those expressly granted or necessary and proper to execute expressly delegated powers, (iii) Congress via the Necessary and Proper Clauses was the sole depository of implied powers, and (iv) the power of removal was not expressly granted to the President, Calhoun concluded that “the power of dismissing is not lodged in the President, but is subject to be controlled and regulated by Congress.” Calhoun warned that, were all three branches of government to assume the right to exercise all powers which they deemed necessary and proper to their granted powers, the contest would undoubtedly terminate in the supremacy of the executive.¹⁹⁶

¹⁹³ 11 REG. DEB. 553 (1835).

¹⁹⁴ *Id.*

¹⁹⁵ *Id.* (italics added).

¹⁹⁶ *Id.* at 555 (“Without its concurrence the action of the other departments are impotent.”).

Recent scholarship on the Necessary and Proper Clause has also “mark[ed] the fulness of the expression”¹⁹⁷ and concluded that the exercise of any implied or unenumerated powers (like removal) belongs to Congress. John Mikhail has highlighted that there are really three Necessary and Proper Clauses, which grant Congress the power “[t]o make all laws which shall be necessary and proper for carrying into execution” (i) “the foregoing powers,” (ii) “all other Powers vested by this Constitution in the Government of the United States,” and (iii) “all other Powers vested by this Constitution in . . . any Department or Officer [of the United States].”¹⁹⁸ As Mikhail observes, the Supreme Court has restricted their analysis to the first Necessary and Proper Clause, which focuses on the enumerated powers of Congress.¹⁹⁹ In contrast to Calhoun, Mikhail argues that the second Necessary and Proper Clause vested the Government of the United States with broad implied and unenumerated powers.²⁰⁰ Both Calhoun and Mikhail, however, observed that for any unenumerated powers vested in the Government of the United States (for Calhoun, “a power appurtenant to another power”), the Necessary and Proper Clause assigns to Congress exclusive authority to carry them into execution “by enacting laws ‘necessary and proper to that end.’”²⁰¹ Similarly, Richard Primus observes that Congress is the branch that exercises any implied powers. He argues that Article I, Section 8 can plausibly be read as creating implied powers, either to legislate in the national interest of the United States or as several specific implied powers held by the national government.²⁰² If, as Primus thinks is possible, the Constitution vests the Government of the United States with unenumerated or implied powers, the “all other powers” language of Necessary and Proper Clause means they are granted *to Congress*.²⁰³

Other originalist scholarship supports Clay and Calhoun’s contention that Congress can regulate the unenumerated power of removal through the Necessary and Proper Clause. In his amicus brief for *Slaughter*, Jed Shugerman argued that the Necessary and Proper Clause vested Congress with the “legislative power to create offices—and conditions on removal—if the ends

¹⁹⁷ See *supra* note 195.

¹⁹⁸ John Mikhail, *The Necessary and Proper Clauses*, 102 GEO. L. J. 1045, 1047 (2014).

¹⁹⁹ *Id.* at 1132.

²⁰⁰ *Id.* at 1128-29. To arrive at this conclusion, Mikhail examines the drafting history of the Necessary and Proper Clauses as well as the use of similar “sweeping clauses” in in court opinions, state constitutions, and other legal texts prior to the founding. *Id.* at 1087-1103, 1127.

²⁰¹ *Id.* at 1128.

²⁰² RICHARD PRIMUS, *THE OLDEST CONSTITUTIONAL QUESTION* 357 (2025).

²⁰³ *Id.* at 103-105, 357.

are necessary and if the means are proper, proportional, and effective.”²⁰⁴ Examining the Constitutional Convention debates, Shugerman noted that the clause was the source of Congress’ power to create offices and was understood to create “more Congressional power over offices, and less Presidential power over offices, relative to England’s balance.”²⁰⁵ Shugerman argued that the Necessary and Proper Clause was a grant of discretionary authority for office creation “but with limits and requirements of reasonableness, fairness, efficacy, proportionality, and rights protections”²⁰⁶ and that debates of the First Congress in 1789 reflected this understanding of the clause.²⁰⁷

V. CONCLUSION

By drawing on largely ignored sources from the Age of Jackson, this paper has sought to refute the Court’s repeated insistence that the Presidentialist position on the removal power “soon became the ‘settled and well understood construction of the Constitution.’”²⁰⁸ That claim and the related claim that “statesmen and jurists accepted its ‘correctness,’”²⁰⁹ this paper has argued, are demonstrably false. As scholars have extensively documented, the “Decision of 1789” was an ambiguous event of uncertain import. The period of apparent acquiescence following these debates is best explained by judicious and limited use of the removal power, rather than a general acceptance of the Presidentialist position as the correct understanding of the Constitution. Once the issue of removal again became a subject of great contestation during the Presidency of Andrew Jackson, leading constitutional authorities and statesmen roundly rejected the Presidentialist position. While many others accepted it, the Court’s historical claim of broad acceptance cannot be maintained. This is relevant for our constitutional interpretation today because the power of the Decision of 1789 lies in the claims that it (i) supplied evidence of original meaning, (ii) delivered a definite outcome in favor of the Presidentialist position on removals, and (iii) was understood as the correct reading of the Constitution as evinced by

²⁰⁴ Brief for Professor Jed H. Shugerman Supporting Respondents at 4, *Trump v. Slaughter* (2026) (No. 25-332).

²⁰⁵ *Id.* at 5.

²⁰⁶ *Id.* at 6.

²⁰⁷ *Id.* at 8.

²⁰⁸ *Free Enterprise Fund v. PCAOB*, 561 U.S. 477, 492 (2010).

²⁰⁹ Brief for Petitioner at 16, *Trump v. Slaughter* (2026) (No. 25-332) (citing *Parsons v. United States*, 167 U.S. 324, 330 (1897)).

acquiescence in the Presidentialist position. While other scholars have attacked the first two premises, this paper has sought to refute the third premise.

Furthermore, this paper has sought to resuscitate sources from the Age of Jackson for purposes of constitutional interpretation. Such sources are needed to evaluate historical claims about whether a particular original public meaning was settled or accepted. They are also valuable resources in themselves. When studying their speeches and commentaries, it becomes clear that these individuals engaged in the same kind analysis of text, structure, and history as modern commentators—though always, as one might expect, with an eye on the practical consequences of these interpretations on the issues of their time. Their constitutional analyses often evinced sustained reflection and notable erudition, and it would be a serious, self-imposed loss for scholars to ignore sources like Webster, Clay, Calhoun, and Story. Ignoring these sources as temporally irrelevant leads to problematic claims, such as the claim that is the core target of this paper on the settlement and acceptance of the Presidentialist position. From William Wirt’s 1823 Opinion on the Take Care Clause to the repeal of the 1867 Tenure of Office Act in 1887 are nearly 70 years of serious contestation over the President’s removal power.²¹⁰ That nearly 70 years of contestation could be transmogrified into settlement and acceptance by a narrow focus on the Founding Era should again encourage questioning of such syncopated historical analysis.

²¹⁰ Act of Mar. 2, 1867, 15 Stat. 430, 432 (1867) (1867 Tenure of Office Act); Andrew Johnson, Message to the Senate (Mar. 2, 1867), in JAMES RICHARDSON, ED., A COMPILATION OF THE MESSAGES AND PAPERS OF THE PRESIDENTS 8: 3690 (1897); JAMES KENT, COMMENTARIES ON AMERICAN LAW (1873) (Oliver Wendell Holmes, Jr., ed.) (“As the instances of the exercise of the power of removal from office have been multiplied beyond all former example, under President Jackson’s administration, the propriety of the concession of the power itself, by the first Congress, has been strongly questioned.”). For a discussion of the repeal of the Tenure of Office Act, see ALVIS ET AL., *supra* note 61, at 113.